

Ravindra Kumar v. State of U.P.

Allahabad High Court · Division Bench · 18 January 2020 · Writ-C No. 1639 of 2020 · Writ - C No. 1639 of 2020 ·
Disposed; relegated to Clause 6.5; coercive action stayed six weeks.

HEADNOTE

A writ seeking to quash a recovery certificate and recovery citation on a dispute as to bill correctness is not entertained when Clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies a statutory remedy. The consumer may approach the appropriate authority under that clause, which is to decide by a speaking order after hearing; coercive action is stayed for a short period.

FACTUAL SUMMARY

Ravindra Kumar petitioned the Allahabad High Court to quash a recovery certificate dated 27 August 2019 issued by respondent no. 4 and a recovery citation dated 6 December 2019 issued by respondent no. 7. The grievance was the correctness of the electricity bill that underpinned those recovery steps. Counsel for the petitioner and for the Electricity Department were heard on 18 January 2020 before a Division Bench of Shashi Kant Gupta and Piyush Agrawal JJ.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

statutory remedy for disputed bill

HOLDING

Where the consumer disputes the correctness of the electricity bill and seeks certiorari against a recovery certificate and recovery citation, the High Court will not entertain the writ because Clause 6.5 of the U.P. Electricity Supply Code, 2005 provides a statutory remedy. The consumer may approach the appropriate authority under Clause 6.5, which is to consider and decide the application in accordance with law by a speaking order after hearing. ¶ 4-6

PRINCIPLE TAGS

clause-6.5-statutory-remedy Writ against a recovery certificate and citation refused because Clause 6.5 supplies the statutory forum for the bill-correctness grievance. ¶ 4-5

clause-6.5-statutory-remedy-disputed-bill A challenge founded on the correctness of the bill, not a merits adjudication of the recovery instruments, is sent to Clause 6.5. ¶ 3-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND VALIDITY OF THE RECOVERY CERTIFICATE DATED 27.8.2019 AND RECOVERY CITATION DATED 6.12.2019

Writ not decided on merits; petitioner relegated to Clause 6.5. ¶ 3-5